The **petition** in M.P.No.2 of 2008 and the unnumbered miscellaneous **petition** have been **file**d under Section 5 of the Limitation Act, seeking an order to condone the **delay** of 310 days in filing the unnumbered **Crimin**al **Revision Petition**s **file**d against the order passed in Crl.M.P.No.1106 of 2006 and Crl.M.P.No.1105 of 2006 in Spl.C.No.2 of 2006 on the **file** of the Chief Judicial Magistrate-sum-Special Judge, Cuddalore.

8. In the **petition**s in M.P.No.2 of 2008 in Crl.R.C.SR.No.39510 of 2008 and in the unnumbered miscellaneous **petition** in Crl.R.C.SR.No.39514 of 2008, the relief sought for is to condone the **delay** of 310 days in filing the **crimin**al **revision petition** by the **petition**er / third party against the second respondents / A1 & A2, wherein A1 had been Minister for Backward Classes in the Government of Tamil Nadu, during the period 1996-2001. The **petition**er / third party has stated that in the year 2006, the first respondent herein had **file**d final report against the second respondent / A1 and his wife (A2) for commission of offences, punishable under Section 13(2), 13(1)(e) of the Prevention of Corruption Act, 1998 read with Section 109 IPC, on account of acquisition and possession of disproportionate wealth to the known sources of their income and the same was taken cognizance by the Chief Judicial Magistrate-cum-Special Judge, Cuddalore by forming an opinion that a prima facie case was made out against the accused A1 & A2 in Spl.C.C.No.2 of 2006. According to the **petition**er herein, the second respondent/A1 and the other accused A2 had purposely dragged on the case till his (A1) political party won in the general election. Again he became a Minister and suddenly proceeded with the case and **file**d a **petition** for discharge under Section 227 of Cr.P.C., seeking to discharge the second respondent / A1 and a similar **petition** was **file**d by the co-accused / A2 and both the **petition**s were allowed by the court below. Against which, the unnumbered **revision petition**s have been **file**d by the **petition**er / third party.

30. If a **petition** to condone the **delay**, under Section 5 of Limitation Act is **file**d by a convicted accused, the Court has to show leniency, so as to decide the main **revision** or appeal on merits. However, in case of **petition**, **file**d under Section 5 of Limitation Act, by a complainant or third party, in an unnumbered **revision petition**, which is legally not maintainable, the Court need not show any leniency in allowing the **petition**. As the unnumbered **revision petition**s **file**d by third party are legally not maintainable, apart from the fact that there is no bonafide reason assigned by the **petition**er to condone the inordinate **delay** of 310 days in filing the unnumbered **crimin**al **revision petition**s, I answer both the points for determination against the **petition**er / third party herein. Therefore, I am of the view that the miscellaneous **petition** is liable to be dismissed and the unnumbered miscellaneous **petition** and the unnumbered **crimin**al **revision petition**s are liable to be rejected.